



THE REPUBLIC OF LIBERIA
LIBERIA MARITIME AUTHORITY

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21 January 2015

Marine Operations Note: 01/2015

Subject: Wrecks Removal Certificate Issuance/Renewal Procedure

References: The Nairobi International Convention on the Removal of Wrecks, 2007

Dear Shipowner/Operator/P&I Clubs:

Purpose

The purpose of this note is to provide information on the Nairobi International Convention on the Removal of Wrecks, 2007 (Convention). Liberia deposited its instrument of accession with the International Maritime Organization (IMO) and became a Party to the Convention on 8 January 2015. This note also provides the Liberian Administrations procedures for issuance of Wreck Removal Convention (WRC) certificates for Liberian flagged vessels and for non-Liberian flagged vessels registered in States that are not yet a Party to the Convention, prior to the conventions entry into force on 14 April 2015.

Background

The Convention provides an international legal framework for ratifying States to promptly and effectively remove shipwrecks that may have the potential to adversely affect the safety of lives at sea, property at sea, as well as the marine environment. It establishes consistency in the treatment of wrecks and guarantees that claimants have unequivocal access to ship-owners' financial security for their liability in respect to wrecks.

Applicability

The Convention will enter into force on 14 April 2015. The Convention requires the registered owner of a ship, having a gross tonnage greater than 300, to maintain insurance or other financial security to cover the removal of wrecks. Vessels must carry onboard, a WRC certificate attesting that insurance or other financial security is maintained in accordance with the provisions of the Convention.

The Convention applies exclusively to liabilities for the removal of wrecks (including any form of prevention, mitigation or elimination of the hazard created by a wreck) in exclusive economic zone of a State Party, established in accordance with international law, or, if a State Party has not established such a zone, in an area beyond and adjacent to the territorial sea. A State may apply to wrecks located within a States territory, including the territorial sea, provided it informs the International Maritime Organization (IMO). Liberia has informed IMO that Liberia will apply the Convention to its territory, including its territorial sea.

Relevant Convention Definitions

“Ship” means a seagoing vessel of any type whatsoever and includes hydrofoil boats, air-cushion vehicles, submersibles, floating craft and floating platforms, except when such platforms are on location engaged in the exploration, exploitation or production of seabed mineral resources.

“Shipowner” means the owner, including the registered owner, bareboat charterer, manager and operator of the ship.

“Registered owner” means the person or persons registered as owner of the ship or in the absence of registration, the person or persons owing the ship at the time of the maritime casualty.

“Wrecks” following upon maritime causality, means: (a) A sunken or stranded ship; or (b) any part of a sunken or stranded ship, including any object that is or has been on board such a ship; or (c) any object that is lost at sea from a ship and that is stranded, sunken or adrift at sea; or (d) a ship that is about, or may reasonably be expected, to sink or to strand, where effective measures to assist the ship or any property in danger are not already being taken.

“Hazard” means any condition or threat that: (a) poses a danger or impediment to navigation; or (b) may reasonably be expected to result in major harmful consequences to the marine environment, or damage to the coastline or related interests of one or more States.

“Convention area” means the exclusive economic zone of a State Party, established in accordance with international law or, if a State party has not established such a zone, an area beyond and adjacent to the territorial sea of that state determined by the state in accordance with international laws and extending not more than 200 nautical miles from the baselines from which the breadth of its territorial sea is measured.

“Territorial sea” extends 12 nautical miles from the coastal baseline.

1. Issuance and Renewal of Wreck Removal Certificate for Liberian Flagged Vessels

In accordance with Article 12 of the Convention, the Liberian Flag State Administration will issue WRC certificates to all applicable Liberian flagged vessels. Accordingly, the Liberian Flag Administration has developed the following procedures for the issuance (and subsequent renewal) of WRC certificates. The procedure will be similar to the process now currently implemented by the Liberian Administration for processing the issuance of Civil Liability Convention (CLC) certificates for oil tankers carrying more than 2,000 tons of oil as cargo and Bunker CLC certificates for ships of 1,000 gross tons.

For the purposes of issuance of the initial certificate (and subsequent renewal), affected vessel owners/operators are requested to provide the Liberian flag Administration with the following documents not later than 30 days prior to the date the certificate is required:

- A. **Wreck Removal Blue Card**, in electronic format, issued by the vessel’s P&I club recognized by the Liberian Administration emailed to vesselcertificates@liscr.com. The P&I club Blue Card must be issued (and so stated thereon) in accordance with the provisions of Article 12 of the Nairobi Convention. The Blue Card must indicate the **Name and Address of the Principal Place of Business of the shipowner**.

- B. **A Written Request** (email preferred) for the WRC certificate, reflecting the name, official number, gross tonnage and IMO number of the vessel, along with the blue card/s issued by the P&I club.

*Kindly indicate your preference to receive the certificate by mail or via electronic means. The email request should specify “Wreck Removal Convention certificate” on the subject line. If courier service is requested, please specify the mailing address to send the certificate(s).

- C. **Payment by check:** wire transfer or credit card (Instructions and form attached/enclosed) for issuance fees, made payable to “LISCR, LLC – Maritime”. The fee for a WRC certificate is USD100.00. If a hard copy of the certificate is preferred, a courier fee of USD45.00 will be applied for each courier shipment.

Please submit the abovementioned documents to vesselcertificates@liscr.com. If it is necessary to send documents by another method, our address is:

Liberian International Ship & Corporate Registry
ATTN: Wreck Removal Applications
8619 Westwood Center Drive, Suite 300
Vienna, Virginia 22182, U.S.A.
Email contact: vesselcertificates@liscr.com

Tel: +1 703 790 3434
Fax: +1 703 790 5655

Timely submission of the required documents and payment will avoid delay in the processing and forwarding of the WRC certificate.

Online Document Verification: Each WRC certificate for Liberian flagged vessels will be issued with the Administration’s Tracking Id (TID) number to enable port States and other parties to verify the validity of the Certificate at our website: www.liscr.com. Document verification is available 24/7. Once issued, the WRC certificate with the Liberian Administration’s TID number must be carried on the vessel at all times, and must be presented on demand to the authorities of any State party to the Convention, while a certified vessel is within the jurisdiction of such State.

Renewal Certification: As with the 1992 CLC certificate, and 2001 Bunker CLC certificate, the WRC will be issued for a period of 12 months to cover February 20th of the current calendar year to February 20th of the following year. Therefore, in line with our understanding of the issuance of the blue cards by the P&I Clubs, the initial Liberian WRC certificate will be issued to cover the period from April 14, 2015 to February 20, 2016. Renewal subsequent to this initial certification will cover the period February 20th of 2016 to February 20th 2017.

2. **Issuance and Renewal of Wreck Removal Certificate to Non-Liberian Flagged Vessels**

The Administration will issue WRC certificates to a vessel registered in non-Party States pursuant to provisions of the WRC. The above requirements for submission of request with the requisite P&I Club blue card applies. In addition, and for clarity, please also provide the information requested in the attached application form RLM-113 for your non-Liberian registered vessel(s).

Please note that the fee for non-Liberian Registered Vessels is USD300.00. If a hard copy of the certificate is preferred, a fee of USD45.00 will be applied for each courier shipment. Non-Liberian WRC certificate require pre-payment. For timely issuance of requested non-Liberian WRCs, please send a separate payment remittal notice to accounting@liscr.com.

3. Enhanced Application Process.

On approximately 20 February 2015, the Administration will launch its online application system.. At this time, a revised Marine Operations Note will be released to reflect changes to the application instructions.

For questions regarding this note, please contact Vessel Certificates Division at telephone +1 703 790 3434, email: vesselcertificates@liscr.com.

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Wreck Removal Convention Certificate Application Form

Non-Liberian Flag vessels

Please complete this form and submit with your request:

Note: An application form is not required, if the vessel was previously issued a certificate by this Administration and the information provided in section #2 and #9 of the application is still valid. In such cases, submit only the relevant Blue Card and payment with request.

1. Name of Vessel:
2. Port of Registry:
3. IMO No.:
4. Distinctive Number or Letters:
5. Vessel Type:
6. Gross Tons:
7. Year Built (dd/mm/yyyy):
8. Managing Director/Designated Person Ashore (DPA):
Name:
Tel:
Fax:
Email:
9. Mailing Address where the Liberian issued WRC Certificate(s) should be sent:
Attention:
Name of Company:
Street:
City: Postal Code:
Country:
Tel: Email:



LISCR, LLC

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LIBERIAN INTERNATIONAL SHIP & CORPORATE REGISTRY

SEAFARERS CERTIFICATION & MARITIME OPERATION METHODS OF PAYMENT

Please ensure that the name and registration number of the Liberian entity for which payment is being made, and, where available, the invoice number in respect in which you are making payment, are clearly stated on the payment. Available payment methods are listed below:

I. CHECK OR BANK DRAFT:

Checks must be in U.S. dollars and drawn on a bank located in the United States, payable to:
"LISCR, LLC-Maritime Account"

II. BANK (WIRE) TRANSFER

To send your payment by bank transfer, your bank will require the following information:

Wire Transfers from Europe

Bank Name:	Commerzbank Global Shipping, Hamburg Hamburg, Germany
Swift/BIC Code:	COBADEFF208
IBAN:	DE40 2004 0050 0623 4546 02
Account Name and Address:	LISCR, LLC - Maritime Account 8619 Westwood Center Drive, Suite 300 Vienna, VA 22182 USA
Account Number:	623454602

Other Wire Transfers

Bank Name:	Capital One Bank, N.A. Laurel, MD, USA
ABA Number:	255071981
Swift Code:	HIBKUS44
Account Name and Address:	LISCR, LLC - Maritime Account 8619 Westwood Center Drive, Suite 300 Vienna, VA 22182 USA
Account Number:	1360761238

III. AMERICAN EXPRESS, VISA, OR MASTERCARD – Complete the below authorization form and email or fax it to us. Our detailed information is provided on top of this page. Please include any additional invoices on separate page(s).

Invoice Number	Vessel Name	IMO Number	Amount (US\$)
			\$
			\$
			\$
			\$
Total Charges			\$ \$ 0.00

CREDIT CARD INFORMATION:

Please check one: ☐ Visa Card ☐ Master Card ☐ American Express	
Credit Card Number:	Expiration Date Valid to (dd/mm/yy-card may show only month and year):
Security Code (a 3-4) digit number printed on the back of Visa and Master card or the front of American Express Card :	
Name:	Signature:

BILLING ADDRESS (address to which the credit card invoice/statement is mailed):

Street Address:		
City:	Postal/Zip Code:	Country:
Fax:	Telephone:	Email: